THE PUNJAB SHOPS AND ESTABLISHMENTS (AMENDMENT) ACT 2023

(VI of 2023)

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TEXT

[1]THE PUNJAB SHOPS AND ESTABLISHMENTS (AMENDMENT) ACT 2023

(VI of 2023)

[17 February 2023]

An
Act
to amend the Punjab Shops and Establishments Ordinance, 1969

It is expedient further to amend the Punjab Shops and Establishments Ordinance, 1969 (VIII of 1969) for purposes hereinafter appearing:

Be it enacted by Provincial Assembly of the Punjab as follows:

1. Short title and commencement.– (1) This Act may be cited as the Punjab Shops and Establishments (Amendment) Act 2023.

(2) This Act shall come into force at once.

2. Amendment of section 2 of Ordinance VIII of 1969.– In the Punjab Shops and Establishments Ordinance, 1969 (VIII of 1969), for brevity referred to as 'the Ordinance' in section 2:

(a) for clause (a), the following shall be substituted:

(a) "adolescent" means a person who has attained the age of fifteen years but has not attained the age of eighteen years;

(aa) "adult" means a person who has completed his eighteenth year of age;

(b) after clause (b), the following clause (bb) shall be inserted:

(bb) "Authority" means the Authority appointed under section 15 of the Payment of Wages Act, 1936 (IV of 1936);

(c) in clause (c) for the word "fourteenth", the word "fifteenth" shall be substituted;

(d) in clause (e):

(i) in sub-clause (iii), the words "of a factory or" shall be omitted;

(ii) for sub-clause (iv), the following shall be substituted:

(iv) an insurance company, joint stock company, Information Technology (IT) company, software house, bank, brokers' offices or exchange and office of lawyers, income-tax practitioners, IT professionals, registered accountants, contractors, engineers and private clinics of doctors;

(e) for clause (j), the following shall be substituted:

(j) "establishment" means a shop, commercial establishment, industrial establishment, private healthcare facilities, residential hotel, restaurant, eating house, cafe, cinema, theatre, circus, or other place of public amusement or entertainment, schools, educational institutions, teaching academies, technical and

[1]This Act was passed by Provincial Assembly of the Punjab on 9 January 2023; and was assented to by Governor of the Punjab on 23 January 2023; and was published in the Punjab Gazette (Extraordinary), dated: 17 February 2023, pp. 3869-3874.

vocational training institutes and such other establishments or class thereof as Government may, by notification in the official Gazette, declare to be establishments for the purposes of this Ordinance;

(f) in clause (o), after the words “work of”, the expression “mending, assembling, fabricating, blending, construction of building, erection of machinery,” shall be inserted;

(g) for the semicolon at the end of clause (x), a full stop shall be substituted; and

(h) clause (y) shall be omitted.

3. Amendment of section 5 of Ordinance VIII of 1969.– In the Ordinance, in section 5:

(a) in sub-section (1),

(i) in clause (i), after the expression “offices of the Government”, the expression “as mentioned in the Punjab Government Rules of Business” shall be inserted;

(ii) in clause (iii), after the expression “or under any” the expression “local government,” shall be inserted; and

(iii) in clause (vii), after the word “persons” the expression “financed and managed by the Government, Federal Government, local government or any local authority of the Government” shall be inserted; and

(b) in sub-section (2), the expression “in clause (a) of sub-section (1) of section 6 and” shall be omitted.

4. Amendment of section 6 of Ordinance VIII of 1969.– In the Ordinance, in section 6:

(a) in sub-sub-section (5), for the expression “prescribed authority-” the expression “Inspector appointed under section 25 of this Ordinance:” shall be substituted; and

(b) in sub-section (6), for the words “prescribed authority”, the word “Inspector” shall be substituted.

5. Amendment of section 7 of Ordinance VIII of 1969.– In the Ordinance, in section 7:

(a) in sub-section (1), in second proviso, after the word “after”, the words “or before” shall be inserted;

(b) in sub-section (3), the words “and half” shall be omitted and for the words “young person”, the words “an adolescent” shall be substituted; and

(c) in sub-section (4), the words “or young person” shall be omitted and for the figure “7”, the figure “8” shall be substituted.

6. Amendment of section 8 of Ordinance VIII of 1969.– In the Ordinance, in section 8, the following shall be substituted:

“**8. Daily, weekly hours and overtime**.– (1) Save as otherwise expressly provided in this Ordinance, no adult employee shall be required or permitted to work in any establishment in excess of nine hours a day and forty-eight

hours a week, and no adolescent in excess of seven hours a day and forty-two hours a week:

Provided that in any day or in any week, in which there occurs stock-taking, making up of accounts, settlement or such other business operation, and during such other periods as may be prescribed, an adult employee of an establishment may be required or permitted to work over-time in such establishment for more than nine hours in such day and for more than forty-eight hours in such week, but so that the total number of hours so worked by an adult does not exceed six hundred and twenty four hours in any one year.

(2) The employer shall not:

(a) allow an adolescent to work in an establishment except between 9:00 a.m. and 8:00 p.m.;

(b) allow an adolescent to work in any establishment on any day on which he has already been working in another establishment;

(c) fix the hours of an adolescent in such manner that the working hours are in conflict with the timings of the educational or vocational institution, where he is enrolled; and

(d) allow an adolescent to work overtime.".

7. Amendment of section 10 of Ordinance VIII of 1969.– In the Ordinance, for section 10, the following shall be substituted:

"**10. Spread-over**.– The period of work of an adult and adolescent shall be so arranged that inclusive of the interval for rest or meals under section 7, it shall not spread-over more than twelve hours in the case of adult and seven hours in the case of adolescent:

Provided that the total period of work so worked out, in case of an adult employee, shall not exceed sixty hours and by an adolescent forty-two hours in a week.".

8. Amendment of section 11 of Ordinance VIII of 1969.– In the Ordinance, in section 11, for sub-section (4), the following shall be substituted:

"(4) All wages shall be paid in legal tender in such manner as may be prescribed.".

9. Amendment of section 12 of Ordinance VIII of 1969.– In the Ordinance, in section 12,

(a) for sub-section (1), the following shall be substituted:

"(1) The Authority shall hear and decide all claims arising out of delay in the payment or non-payment of the wages of employees in the area assigned to it.";

(b) in sub-section (2), the words "appointed under sub-section (1)" shall be omitted;

(c) in sub-section (4), for the word "it" the words "the application" and for the word "fifty", the words "five hundred" shall be substituted;

(d) in sub-section (5), for sub-clause (b), the following shall be substituted:

"(b) if the Authority is not a Magistrate, by the Authority as arrears of land revenue or, in the prescribed manner by distress and sale of the moveable property belonging to the person by whom the

amount is to be paid, or by the attachment and sale of the immovable property belonging to such person.";

(e) in sub-section (6):

(i) in sub-clause (a), for the word "one", the word "two" shall be substituted; and

(ii) in sub-clause (b), for the word "fifty", the words "one hundred" shall be substituted; and

(f) in sub-section (8), for the expression "An Authority appointed under sub-section (1)", the words "The Authority" shall be substituted.".

10. Amendment of section 13 of Ordinance VIII of 1969.– In the Ordinance, in section 13, in sub-clause (a), the expression "appointed under sub-section (1) of that section," shall be omitted.

11. Amendment of section 17 of Ordinance VIII of 1969.– In the Ordinance, in section 17, in sub-section (2), for the words "a young person", the words "an adolescent" shall be substituted.

12. Insertion of sections 20-A and 20-B in Ordinance VIII of 1969.– In the Ordinance, after section 20, the following sections 20-A and 20-B shall be inserted:

"**20-A. Adolescent to carry card giving reference to certificate of age**.– No adolescent shall be allowed to work in any establishment unless:

(a) a certificate of his registration with the National Database and Registration Authority (NADRA) or a certificate of his birth registration with the respective local government are in the custody of the employer; and

(b) he carries, while at work, the card issued by the employer giving a reference to such certificate.

20-B. Register of adolescents on work.– The employer of every establishment shall maintain a register containing the following particulars of the adolescents working in his establishment:

(a) name and date of birth of each adolescent in employment of the establishment;

(b) date of start of employment of the adolescent;

(c) nature of work assigned to the adolescent and his working hours, which shall not be in conflict with the provisions of the Punjab Restriction on Employment of Children Act 2016 (L of 2016);

(d) reference number of certificate mentioned in section 20-A and its date of issuance;

(e) blood group of the adolescent;

(f) contact number of the adolescent and his near relative for contact in case of an emergency; and

(g) such other particulars of the adolescent as may be prescribed.".

13. Insertion of sections 21-A, 21-B ,21-C and 21-D in Ordinance VIII of 1969.– In the Ordinance, after section 21, the following sections 21A, 21B and 21C shall be inserted:

"**21-A. Compulsory vaccination and inoculation**.– (1) Every employee in an establishment shall be vaccinated and inoculated against such diseases and at such intervals as may be prescribed.

(2) The expenses of compulsory vaccination and inoculation as mentioned at sub-section (1) shall be borne by the employer of the establishment.

21-B. Provision of canteen.– (1) The Government may direct that in an establishment wherein more than one hundred employees are ordinarily employed, an adequate canteen shall be provided for the employees in such manner as may be prescribed.

(2) Without prejudice to the generality of sub-section (1), the rules under that sub-section may provide for:

(a) the date by which such canteen shall be made functional;

(b) the standards of construction, accommodation, furniture and other necessities of the canteen;

(c) the foodstuff to be served therein and the charges thereof; and

(d) representation of the employees in the management of canteen.

21-C. Prohibition on lifting excessive weight.– (1) No person shall be employed in any establishment to lift, carry or move any load so heavy as to likely cause him an injury.

(2) The Government may make rules prescribing the maximum weights which may be lifted, carried or moved by an adult man, adult woman and adolescent employed in an establishment or in any class or description of establishments or in carrying on any specified process.

21-D. Provision of separate toilets.– The employer shall make provision of enclosed and separate toilets for male and female employees, and such toilets shall be maintained in a clean and sanitary condition at all times.".

14. Amendment of section 22 of Ordinance VIII of 1969.– In the Ordinance, for section 22, the following shall be substituted:

"**22. Guarding of machinery**.– In every industrial establishment, all mechanically or electrically propelled machinery shall be properly guarded by the employer to avoid any occupational hazard or injury to the employee in such manner as may be prescribed.".

15. Amendment of section 23 of Ordinance VIII of 1969.– In the Ordinance, in section 23, after the word "information", the words "to the Authority on demand" may be inserted.

16. Amendment of section 24 of Ordinance VIII of 1969.– In the Ordinance, in section 24:

(a) in the heading, the words "and fee for registration" shall be omitted;

(b) for sub-section (2), the following shall be substituted:

"(2) An application for registration of an establishment shall be made by the employer as per format in Form 'A'.".

Explanation– For the purposes of this section, "one man shop" means a shop run by an employer or by any member of employer's family without engaging

an employee.

(c) in sub-section (4):

(i) the words “and the fees” shall be omitted; and

(ii) in sub-section (4), for the full stop at the end, a colon shall be substituted, and thereafter the following proviso shall be inserted:

“Provided that such registration and issuance of registration certificate may be done through electronic mode online.”

(d) in sub-section (5), for the words “on depositing fee as prescribed in sub-section (2)”, the words “or such other interval as the Government may notify in the official Gazette” shall be substituted.

17. Amendment of section 27 of Ordinance VIII of 1969.– In the Ordinance, in section 27, in sub-section (1), for the words “one thousand”, the words “two thousand” shall be substituted.

18. Amendment of section 28 of Ordinance VIII of 1969.– In the Ordinance, in section 28, after sub-section (2), the following sub-section (3) shall be inserted:

“(3) Every offence under section 27 shall be cognizable on the complaint made by an Inspector appointed under this Ordinance, and may be tried summarily.”.

19. Insertion of section 28-A in Ordinance VIII of 1969.– In the Ordinance, after section 28, the following section 28-A shall be inserted:

“**28-A. Presumption as to employment**.– If a child over the age of six years is found inside any part of an establishment in which adolescents are employed, he shall, until the contrary is proved, be deemed to be working in the establishment.”.

20. Amendment of section 31 of Ordinance VIII of 1969.– In the Ordinance, in section 31, after the word “authority”, the expression “,the concerned Secretary to the Government” shall be inserted.

21. Amendment of section 32 of Ordinance VIII of 1969.– In the Ordinance, in section 32, for the word “fifty”, the words “one thousand” and for the word “ten”, the word “fifty” shall respectively be substituted.

22. Amendment in Schedule of Ordinance VIII of 1969.– In the Ordinance, in the Schedule:

(a) for Form A, the following shall be substituted:

“**FORM ‘A’**
APPLICATION FORM

1. Name of the establishment, if any.
2. Complete Postal address of the establishment including name of city, tehsil and the district.
3. E-mail and web address of the establishment.
4. GPS coordinates of the location of the establishment.
5. Full name of the employer (including his father’s/ husband’s name).
6. CNIC Number of the employer.

7. Gender of the employer.

8. Mobile contact number of the employer.

9. E-mail address of the employer.

10. Name, gender, date of birth and relation of employer's family members with the employer.

11. Full name of the Manager, if any (including his father's name).

12. CNIC Number of the Manager.

13. Gender of the Manager.

14. Mobile contact number of the Manager.

15. E-mail address of the Manager.

16. Category of the establishment, *i.e.*, whether a shop, industrial establishment, commercial establishment, residential hotel, restaurant, eating house, theatre or other place of public amusement or entertainment etc.

17. Name of the Chamber of Commerce and Industry with which the establishment is registered/ affiliated (if any).

18. Total number of employees (state separately the number of men, women and/or adolescents, if any along with their category as permanent employee or temporary employee).

19. Date, month and year in which the establishment commenced its work.

20. I hereby declare that the details given above are correct to the best of my knowledge.

Dated ***Signature of the employer***

Note–This statement shall be sent to the Deputy Chief Inspector of the area concerned.

(b) in Form B, for the words "Young persons" wherever appearing, the word "Adolescents" shall be substituted.

(c) for Form C, the following shall be substituted:

"Registration No.;

Registration Date;

REGISTRATION CERTIFICATE

It is hereby certified that the establishment---------- located at ----------TEHSIL----------DISTRICT---------- has been registered under THE PUNJAB SHOPS AND ESTABLISHMENT ORDINANCE, 1969.

Registration valid till ---------- Chief Inspector of Shops & Establishments”